

HOUSE No. 4976

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, January 27, 2026.

The committee on Transportation, to whom was referred the petition (accompanied by bill, House, No. 3695) of Steven S. Howitt relative to roadway littering, reports recommending that the accompanying bill (House, No. 4976) ought to pass.

For the committee,

JAMES ARCIERO.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to littering.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 90 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after Section 22G the following section:-

3 Section 22G 1/2. No operator of a motor vehicle shall litter, or knowingly permit an
4 occupant of their vehicle to litter on public or private property through the disposal of trash or
5 garbage from said motor vehicle. A violation of this section shall be considered a civil motor
6 vehicle infraction and shall be punishable by a civil citation issued pursuant to chapter 90C,
7 which shall include a fine of \$100 for a first offense, \$250 for a second offense, and \$500 for a
8 third or subsequent offense. A civil citation issued for a third or subsequent offense shall be
9 considered a surchargeable offense under Section 113B of Chapter 175.

10 SECTION 2. This Act shall take effect upon its passage.